

25CHCV03660 25CHCV03660

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Division: Civil Law and Motion

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Case Number: 25CHCV03660 Hearing Date: August 19, 2026 Dept: F47

Dept. F47

Date: 8/19/26

Case #25CHCV03660

DEMURRER TO THE
ORIGINAL COMPLAINT

Demurrer filed on 2/13/26.

MOVING PARTY: Defendant Valencia Management Group

RESPONDING PARTY: Plaintiffs Celia Rodriguez, individually
and as successor in interest of Antonio Rodriguez; Anthony Rodriguez and
Christie Rodriguez

Demurrer is to 1st, 2nd and 4th
causes of action:

1. Negligence – Premises Liability
2. General Negligence
3. Statutory Liability/Dangerous Condition of
Public Property (not alleged against Valencia Management Group)
4. Survival Claim (CCP 377.34)

RULING: The demurrer is overruled. Answer is due within 20 days.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of an incident that occurred on 9/2/24 when Antonio Rodriguez (Decedent) was riding his bicycle on Ricasoli Way, approximately 22 feet north of Red Hawk Lane in Northridge, when he collided with a steel barrier gate and was killed. (Complaint ¶¶ 8, 10). Plaintiffs Celia Rodriguez, individually and as successor in interest, Anthony Rodriguez, and Christie Rodriguez (collectively, Plaintiffs) filed this action on 10/13/25 against the developer, Toll Brothers, Inc., the City of Los Angeles, Valencia Management Group (VMG), Archon Protection, Inc., and Doe defendants.

After meet and confer efforts failed to resolve the issues VMG had with Plaintiffs' complaint, on 2/13/26, VMG, through attorney Jennifer Ryu of Swedelson Gottlieb filed and served the instant demurrer to the 1st, 2nd and 4th causes of action in the complaint on the grounds that the complaint fails to state facts sufficient to state each cause of action and each cause of action is uncertain. CCP 430.10(e), (f). The demurrer was originally scheduled for hearing on 7/17/26. On 7/6/26, Plaintiffs filed and served an opposition to the demurrer.

With regard to VMG, the proof of service shows that the opposition was served on attorneys at the Swedelson Gottlieb law firm. However, on 6/9/26, VMG filed and served a Substitution of Attorney indicating that it had substituted in Art H. Nguyen of Homan, Stone & Rossi, APC as its counsel in place of Jennifer H. Ryu of Swedelson Gottlieb. No reply to the opposition had been filed with regard to the 7/17/26 hearing date.

To ensure that VMG's counsel received the opposition and had an opportunity to file and serve a reply, if they so choose, the hearing on the demurrer was continued to 8/19/26.

On 7/22/26, VMG filed and served a reply to the opposition.

ANALYSIS

In ruling on a demurrer, a court assumes the truth of all properly pleaded material facts, but does not assume the truth of contentions, deductions, or conclusion of fact or law.

Blank (1985) 39 C3d 311, 318.

A complaint is sufficient if it pleads ultimate facts rather than evidentiary facts. Doe (2007) 42 C4th 531, 550.

The elements of a premises liability cause of action are:

(1) the defendant owned, leased, occupied or controlled the property; (2) the defendant was negligent in the use, maintenance, or management of the property; (3) the plaintiff was harmed, and defendant's negligence was a substantial factor in causing the plaintiff's harm.

CACI 1000. In order to establish negligence and premises liability, a plaintiff must prove defendant owed a legal duty of care, defendant breached that duty and that breach proximately caused injury. Kesner (2016) 1 C5th 1132, 1158.

It has been held that allegations that the named defendants owned, leased, occupied, maintained or controlled the property together with allegations of injury and that the defendants knew or should have known of the dangerous condition is sufficient to state causes of action for negligence and/or premises liability. See Martin (2023) 96 CA5th 681, 689. The complaint in this action meets the foregoing pleading requirements and VMG's attempt to distinguish this case from Martin, supra, is unavailing. (See Complaint ¶¶8, 17-19, 22, 25-27).

With regard to the negligence cause of action, the complaint also alleges that VMG was in a special relationship with Decedent and assumed a duty of care to him, that VMG undertook, gratuitously or for consideration, to avoid, remedy, or abate the dangerous condition and failed to exercise reasonable care in doing so, and that VMG's conduct resulted in breach, causation, and damages. (Complaint ¶¶24-25, 39-35). Such allegations are sufficient to state a negligence cause of action. See Artiglio (1998) 18 C4th 604, 613.

The survival cause of action depends on the premises liability and negligence causes of action. Since those causes of action are sufficiently pled, so is the survival cause of action.

Similarly, the complaint is not so uncertain that VMG

cannot respond to the claims alleged against it. Therefore, the demurrer based in uncertainty also fails. See Lickiss (2012) 208 CA4th 1125, 1135. Moreover, any ambiguities can be resolved through discovery.

VMG has also failed to establish that allegations regarding the City of Los Angeles' ownership and control of the roadway establish as a matter of law that Plaintiffs cannot also establish a liability against VMG. Finally, VMG's argument that it had no relationship to the property cannot be resolved on demurrer.

CONCLUSION

The demurrer is overruled. Answer is due within 20 days.